STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service

CASE 25-G-0073 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service

OFFICE OF STATE SENATOR ROBERT JACKSON

STATEMENT OF OPPOSITION TO THE JOINT PROPOSAL

November 26, 2025

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I. Preliminary Statement

State Senator Robert Jackson ("Senator Jackson") respectfully submits this Statement in Opposition to the Joint Proposal ("JP") filed by Consolidated Edison Company of New York ("Con Edison") on November 5, 2025.

While acknowledging constructive progress in language access, reporting, Energy Affordability Program (EAP) funding, AMI deployment, and initial NWA/NPA frameworks, Senator Jackson opposes the Joint Proposal because overall residential affordability remains inadequate. The JP leaves households facing higher bills, complex reconciliations, and property tax volatility without sufficient relief. Neutrality requires that rate design and recovery structures stabilize or reduce the average household's energy burden; this Joint Proposal fails that test.

II. Statement of Interest

Senator Jackson represents communities within Con Edison's service territory that are especially vulnerable to bill impacts, housing instability, and cumulative environmental burdens. Over 30% of constituents are eligible for the Energy Affordability Program (EAP) and still struggle to pay bills even while stacking multiple programs and subsidies.

Senator Jackson has been a party to these proceedings since their inception and has actively participated in the settlement negotiations. His continued involvement underscores a direct and substantial interest in Commission review and correction of any proposal that does not prioritize affordability, independent verification, and distributional fairness.

III. Grounds for Opposition

A. Affordability and Rate Impacts

The JP proposes **2.8% annual increases for electric service and 2.0% annual increases for gas service**, compounded across Rate Years 1–3. For many families, these increases cause major financial distress.

Electric Revenue Increases and Impacts (Shaped)

Rate Year	Revenue Increase ($M)	Impact on Delivery	Impact on Total Bill
RY1	$234.0	4.4%	2.8%
RY2	$409.7	4.4%	2.8%
RY3	$421.1	4.3%	2.8%

Gas Revenue Increases and Impacts (Shaped)

Rate Year	Revenue Increase ($M)	Impact on Delivery	Impact on Total Bill
RY1	$27.5	2.8%	2.0%
RY2	$68.8	2.8%	2.0%
RY3	$70.3	2.8%	2.0%

Monthly Customer Charges

Electric Service Class Rates

Class	Current	RY1 (2026)	RY2 (2027)	RY3 (2028)
SC 1 Rate I, II, III, Rider Z	$20.00	$21.00	$22.00	$23.00
SC 1 Rate IV	$29.00	$31.00	$33.00	$34.00

Gas Service Class Rates

Class	Current	RY1 (2026)	RY2 (2027)	RY3 (2028)
SC 1	$33.23	$33.23	$33.66	$33.66
SC 3 Rate I	$32.00	$34.00	$37.00	$40.00
SC 3 Rate II	$32.00	$51.00	$56.00	$60.00

These shaped numbers confirm that increases are steady and compounding, creating predictable but unaffordable burdens for households already at the margin.

B. Return on Equity (ROE) The proposed ROE of 9.4% is excessive under current market conditions. A 9.0% ROE better balances investor needs with affordability obligations.

C. Reconciliations and Bill Volatility Frequent surcharges, overlapping reconciliations, and long amortizations increase bill complexity and volatility. Simplification is necessary to reduce consumer burden.

D. Commodity Supply Procurement Discipline Con Edison must demonstrate best-efforts procurement practices to minimize commodity supply costs, even though it does not profit from supply.

E. Property Tax Advocacy Property tax reconciliations pass volatility to customers. Con Edison should actively advocate for reforms to reduce burdens on its tax class and report annually on outcomes.

F. Transparency and Verification Independent audits, machine-readable filings, and public disclosure windows are essential to ensure accountability and protect ratepayers. Rates and tariff calculations must be provided in machine-readable form, with full customer data pools accessible regardless of size. Customers should not need a rate engineer or advanced accounting expertise to understand how their bills are calculated. Bill transparency is a bipartisan issue in both chambers of the Legislature, and Con Edison should proactively provide this level of access before state law compels them to do so.

IV. Acknowledged Improvements

Senator Jackson recognizes and supports several constructive elements within the Joint Proposal, which should be preserved and strengthened regardless of the Commission's ultimate disposition:

- **Residential Demand Calculation (SC 1 Rates IV and V, Rider Z)** – Improves understandability of demand rates.
- **Coincident Demand** – Extends coincident demand billing to all customers with multiple AMI meters.
- **Earnings Adjustment Mechanisms (EAMs):**
    - Demand Response EAM promotes grid flexibility.

    - Transportation Electrification Interconnection Timeline EAM supports clean mobility.
    - Building Interconnection Timeline EAM advances building decarbonization.
- **Estimated and Delayed Billing Metric** – Ensures accountability in billing practices.
- **No Limit on EAP Participation** – Guarantees all qualifying customers may participate.
- **Streetlight Registry and Metric** – Con Edison and the City of New York's Phase 0 Assessment and Memorandum of Understanding on urgent streetlight repairs are constructive steps toward transparency, accountability, and improved service. This initiative is critically important for public safety.
- **Capital Projects Explicitly Supported –** Riverdale Crossing (Project 21479860) and the Sherman Creek Service Center (Project 21656717) reflects needed investment in infrastructure and community service reliability.

V. Conclusion

For the reasons stated above, Senator Jackson respectfully urges the Commission to reject the Joint Proposal in its current form and require modifications that directly address affordability, bill stability, property tax reform, and transparency in rate calculations, while preserving the constructive improvements noted herein.

Respectfully submitted,

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